

The Claremont City Council held a meeting on Wednesday, June 8, 2022, in the Council Chambers of City Hall.

The meeting was called to order by Mayor Girard at 6:30 p.m.

Members of the Council present:

Ward II Councilor James Contois
Ward I Councilor Andrew O’Hearne
Ward III Councilor Jonathan Stone
Assistant Mayor Debora Matteau – Absent
At-Large Councilor Nicholas Koloski
At-Large Councilor William Limoges
At-Large Councilor Lucas Beliveau – Absent
At-Large Councilor Matthew Mooshian
Mayor Dale Girard

Also present:

John MacLean, Interim City Manager
Lisa Richmond, Finance Director

AGENDA CHANGES

Mayor Girard removed item 10A off of the agenda, to be added onto the June 22nd agenda.

REPORT OF THE SECRETARY

A motion was made by Councilor Koloski and seconded by Councilor Stone to accept the minutes of the May 25th, 2022, City Council meeting.

Councilor Contois asked for a name correction on page 17.

Voice vote: motion carried 7-0

A motion was made by Councilor Limoges and seconded by Councilor Stone to accept the minutes of the May 4th, 2022, City Council meeting.

Mayor Girard asked for a title change from non-public to City Council.

Councilor O’Hearne asked to change the invitees’ names to be placed after the motion to enter into a non-public.

Voice vote: motion carried 7-0

A motion was made by Councilor Koloski and seconded by Councilor Mooshian to accept the minutes of the May 17th, 2022, City Council meeting.

Mayor Girard asked for a title change from non-public to City Council.

Councilor O’Hearne asked to change the invitees’ names to be placed after the motion to enter into a non-public.

Voice vote: motion carried 7-0

MAYOR’S NOTES

Proclamation – Pride Week for Rural Outright

Mayor Girard read a proclamation for Rural Pride Week to members of TLC Family Resource Center.

Codi Raymond, Ward 1, Human Resource Assistant at TLC Family Resource Center thanked the Council for the proclamation. Ms. Raymond stated events can be found on the Rural Outright Facebook page and website.

Mayor Girard attended the Wheel House for a ribbon cutting ceremony, and noted it seemed like a very successful event with lots of activity.

Mayor Girard stated this Saturday June 11th at 10:30 AM is the Stevens High Alumni Parade. Mayor Girard also congratulated Stevens High class of 2022 for graduating.

CITY MANAGER’S REPORT

Mr. MacLean made note of the three handouts that were given to Council this evening. One is a possible motion for rail trail use at 13 Edgewood. The second handout is a memorandum from Finance Director Ms. Richmond for the clerical union formula. The last handout is an article given by Andy LaFreniere who is our energy broker, Mr. MacLean noted energy costs will play a significant part in our budget.

Mr. MacLean gave an update to the Council relative to the upgrades for the Opera House stairs that Councilor Koloski at the last City Council meeting asked for repairs. Mr. MacLean stated Bill Willette will attend the next Council meeting to go over in detail all of the upgrades that are being addressed.

Mr. MacLean noted the ARPA funds that would have been used for HVAC issues and roof repair can only purchase materials that are U.S. made. Mr. MacLean stated an adjustment relative to the ARPA funds may need to be made.

Mr. MacLean asked the Council to let Mr. LaFreniere give a brief presentation on energy.

Andy LaFreniere, Ward 3, is an energy consultant and has been working in such capacity for thirteen years, and has worked with the City for eleven years. Mr. LaFreniere gave an overview of electricity procurement, and gave recommendations on fixed rates, block and index approaches

Councilor Koloski shared concern for this subject being brought into Council on short notice. Councilor Koloski would rather see this as an agenda item.

Mayor asked for Consensus to move this item to a future agenda.

Mr. MacLean noted the first meeting in July will be with the new Interim City Manager. Mr. LaFreniere stated the current energy contract is up in November.

Energy Procurement was moved by Consensus to be added to the July 13th City Council Meeting.

Councilor Contois publicly commended the Claremont Fire Department for their immediate response over the past week for a smoke incident at senior housing.

APPOINTMENT TO BOARDS AND COMMITTEE

Parks and Recreation Commission

A motion was made by Councilor Koloski and seconded by Councilor Stone to re-appoint Rob Walker to Seat 1 of the Parks and Recreation Commission.

Voice vote: motion carried 7-0

Tax Increment Finance District Advisory Board

A motion was made by Councilor Koloski and seconded by Councilor Mooshian to re-appoint Dana McGrath to Seat 4 of the TIFD Advisory Board.

Voice vote: motion carried 6-1

Parks and Recreation Commission

A motion was made by Councilor Koloski and seconded by Councilor Mooshian to re-appoint Dana McGrath to Seat 3 of the Parks and Recreation Commission.

Voice vote: motion carried 7-0

CITIZEN'S FORUM

Kevin Tyson, Ward 2, emailed a presentation earlier to Council members describing an alternative approach to the Transfer Station. Mr. Tyson suggested installing bioreactors to produce methane, methanol, diesel, and hydrogen. Mr. Tyson noted Casella operates a similar facility in Connecticut that is fed with organic waste from Vermont. Mr. Tyson explained the gases that are produced can be used for transportation fuels, and electricity.

Chris Fazio, Ward 3, stated he had just purchased a house. Mr. Fazio relayed to the Council that the reason for being at the Council meeting is to request more "no parking" signs on Shannon Street. Mr. Fazio noted that cars are illegally parked on Shannon Street which has led to many children and parents cutting across his lawn.

Andy LaFrenier, Ward 3, noted to the Council that City energy usage is down 30% from just a few years ago, and that the City should be commended.

OLD BUSINESS

Ordinance 593 Amend Merit Plan - Third Reading – Public Hearing

CITY OF CLAREMONT - IN THE YEAR TWO THOUSAND AND TWENTY-TWO

ORDINANCE #593

Amending Appendix B Personnel Classification and Pay Schedules

THE CITY OF CLAREMONT ORDAINS:

Pursuant to Article III, Sections 24 and 25; Article IV, Section 52, of the Claremont City Charter, Part II, Appendix B (Personnel Classification and Pay Schedules) of the Claremont City Code, is hereby amended and readopted as follows:

Section 1. Amendment to Salary/Pay Scales in Attachment C During Budgetary Process

Adopt a new Section 4 of Appendix B (Personnel Classification and Pay Schedules) to read as follows:

Section 4. Amendment to Salary/Pay Scales in Attachment C During Budgetary Process

During the City's annual budgetary review and approval process, the city's administration may submit amendment(s) to the salary/pay scales as set for in Attachment C, as previously referenced herein, for consideration by the city council as part of the proposed annual budget of the City of Claremont. In such an event, the budgetary proposal, which includes amendment(s) to the salary/pay scales in Attachment C, shall constitute an "ordinance" in accordance with sections 24, 25 and 52 of the City of Claremont Charter. In addition, the adoption of any annual budget, with such amendment(s) to these salary/pay scales, shall comply with the procedures set forth in section 25 of the Charter. Any rejection, by vote of the city council, of any proposed amendment to the salary/pay schedules set forth in Attachment C shall not, by itself, serve as a vote against the adoption of the overall proposed annual budget of the City of Claremont for that fiscal year.

Section 2. Renumbering of Impacted Sections to Part II, Appendix B (Personnel Classification and Pay Schedules)

These sections of the prior version of Appendix B (before the adoption of this Ordinance) shall be assigned new numerical designations with the adoption of the proposed Section 4, as identified above, in the following manner:

Previous Section Reference

New Section Reference

Section 4. (Prior enactment superseded) Section 5. (Prior enactment superseded)

Section 5. (Validity)

Section 6. (Validity)

Section 6. (Effective date)

Section 7. (Effective date)

Section 3. Prior Enactments Shall Not Be Superseded

Any adoptions and/or amendments to the City of Claremont Appendix B (Personnel Classification and Pay Schedules) by action of the City Council, prior to adoption of this Ordinance, are hereby preserved subject to the current amendments as presented by this Ordinance.

Section 4. Validity

If any article, section, subsection, sentence, clause or phrase of this Ordinance is for any reason held to be unconstitutional or invalid, such decision shall not affect the remaining portions of this Ordinance.

Section 5. Effective Date

This Ordinance shall take effect and be enforced immediately upon passage, but shall be retroactive to the first day of the month in which it is passed upon third reading.

Mr. MacLean noted this amendment would provide the option to adjust wages during the budget process. Mr. MacLean added this third reading is occurring too late into the budgetary process we will have to come back and amend the ordinance.

A motion was made by Councilor Mooshian and seconded by Councilor Stone to adopt Ordinance 593.

Councilor Mooshian read Ordinance into record

Mayor Girard opened the public hearing, no one spoke. Mayor Girard closed the public hearing.

Roll call:

Contois - no

O'Hearne - no

Stone - yes

Koloski - yes

Limoges - yes

Mooshian - yes

Girard - yes

Motion carried 5-2

NEW BUSINESS

LCHIP Grant

Motion to Authorize NH Land and Community Heritage Investment Program (LCHIP) Application

The Claremont City Council hereby authorizes the City Manager or his designees to execute and perform all actions as may be required to apply for LCHIP funding for the purpose of City Hall window restoration. Upon notice that the Project has been selected, the Council will entertain a resolution to raise and appropriate funds for the Project, of which 50 percent shall be reimbursed to the City from LCHIP funding.

Ms. Merrill stated the funding was for the restoration of City Hall windows and the application deadline is June 22nd. Ms. Merrill would like to apply for the remainder for the City Hall windows to be restored, and noted a 50% match will be needed.

Councilor Koloski asked where the funds for the match could come from, Ms. Richmond stated

The funds could come from unanticipated revenue.

A motion was made by Councilor Koloski and seconded by Councilor Stone to authorize the City Manager to apply for LCHIP funding for the purpose of City Hall window restoration.

Roll call:

Contois - yes

O'Hearne - yes

Stone - yes

Koloski - yes

Limoges - yes

Mooshian - yes

Girard - yes

Motion carried 7-0

Resolution 2022-30 Conservation Commission Land Use Change Tax 2021 Transfer

RESOLUTION 2022- 30

Claremont Conservation Commission Land Use Change Tax

BE IT RESOLVED by the Claremont City Council, after a public hearing, duly noticed, that

WHEREAS, the City Council approved on August 8, 1993 to transfer funds up to \$5,000.00 of monies collected on a yearly basis from current use penalties to the Conservation Commission.

WHEREAS, Conservation Commission didn't receive funds for the 2021 transfer of funds from current use penalties;

WHEREAS, we would like to now transfer funds to Conservation Commission

NOW THEREFORE BE IT RESOLVED to raise and appropriate the sum of up to \$5,000 to be taken from Fund Balance with no impact on the tax rate;

BE IT FURTHER RESOLVED that the City Manager, or his designees, are hereby authorized to undertake all actions and execute all documents as may be required to implement this resolution.
(2/3 vote required)

Ms. Richmond explained this is to remedy the transfer that did not take place last year, and to

raise and appropriate \$5,000 from the Fund balance that should have gone into the Conservation Commission.

A motion was made by Councilor Contois and seconded by Councilor Limoges to authorize the City Manager to transfer the sum of up to \$5,000 to be taken from Fund Balance with no impact on the tax rate to the Conservation Commission.

Gary Dickerman, Ward 3, gave a brief overview of what these funds have been used for in the past such as the Stevens Brook Easement, and noted work on Cathole Road relative to its litter problem needs work.

Roll call:

Contois - yes

O'Hearne - yes

Stone - yes

Koloski - yes

Limoges - yes

Mooshian - yes

Girard - yes

Motion carried 7-0

Funds Transfer

Ms. Richmond stated Budget 417 (auto insurance) premiums were less this year so funds are able to be transferred for upgrades and repairs.

Motion to Transfer Funds Between Departments

The Claremont City Council, pursuant to Article III, Section 45 of the Claremont City Charter, hereby authorizes the City Manager or his designees to transfer the following sums of money between departments, such funds having been raised and appropriated in the 2023 City budget.

Transfer from:	01-417-630-0030	Insurance- Auto	\$11,129.30
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Transfer to:	01-461-835-0000	Interest – 2021 Bond	\$11,129.30
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Transfer from:	01-417-630-0030	Insurance- Auto	\$10,000.00
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Transfer to:	01-415-510-000	Building M &R	\$10,000.00
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A motion was made by Councilor Contois and seconded by Councilor Stone to authorize the City Manager to transfer funds from 01-417-630-0030 to 01-461-835-0000 and 01-417-630-0030 to 01-415-510-000

Roll call:

Contois - yes

O'Hearne - yes

Stone - yes

Koloski - yes

Limoges - yes

Mooshian - yes

Girard - yes

Motion carried 7-0

Rail Trail Use – 13 Edgewood

Ms. Merrill explained there was a piling of dirt near the edge of the City-owned Rail Trail. Subsequent investigation revealed that Aaron Feustel, owner of the property at 13 Edgewood Street, had been digging out his basement and depositing the dirt at the base of the hill behind his house, thus creating the pile.

Ms. Merrill noted funding is scheduled to be received this summer, these funds will improve sections of the rail trail.

Aaron Feustel, Ward 1, explained to the Council that two years ago a permit was submitted to fix his foundation. Mr. Feustel noted spending 2 years putting dirt down there into the bank and would need more than six months to remove.

Mr. MacLean suggested tabling this discussion tonight and to have Parks and Recreation along with the DPW to give an estimate on a time frame for removal of the dirt pile.

Councilor Contois- wants to make sure Director Merrill is included in this group.

By consensus the Council moved this item to the June 22nd Council meeting.

Ordinance 594 - HB1029 Police Commission

CITY OF CLAREMONT

IN THE YEAR TWO THOUSAND AND TWENTY-TWO

ORDINANCE #594

“POLICE COMMISSION”

REMOVAL AUTHORITY OF CITY COUNCIL

The City of Claremont Ordains:

Pursuant to a special act of the New Hampshire Legislature, by and through House Bill 1029 of the 2022 session, and signed into law by Governor Sununu on April 18, 2022 within Chapter 22 of the Laws of 2022; Chapter 2, Article II, Division 10 of the City of Claremont Code is hereby amended as follows:

Section 1. Division 10 – Police Commission

Section 2-134 is revised as follows:

A police commission, hereinafter referred to as commission, was established prior to the City’s Charter by a special act of the New Hampshire Legislature, Chapter 342 of the Laws of 1947. This special act was amended by Chapter 275, Laws of 1963 and Chapter 382, Laws of 1973. The Legislature also amended certain provisions of the city’s original Charter in 1971 regarding budgetary control of the police department (Ch. 274, Laws of 1971, amending Chapter 392, Laws of 1947); however, some of those changes were repealed in Chapter 382, Laws of 1973. The Legislature, once again, amended this special act by and through Chapter 32 of the Laws of 2021. Another amendment occurred to this special act in Chapter 22 of the Laws of 2022. Pursuant to section 69 of the City Charter, the commission continues to be governed by these special acts of the Legislature rather than the provisions of NH RSA 105-C.

Section 2. Division 10 – Police Commission

Section 2-135 (d) is revised as follows:

- (d) The city council shall have full power to remove any commissioner at any time for just cause and after due hearing which cause shall be specified in the order of removal.

Section 3. Prior Enactments Shall Not Be Superseded

Any adoptions and/or amendments to Chapter 2, Article II, Division 10 of the City of Claremont Code by action of the City Council, prior to adoption of this Ordinance, are hereby preserved subject to the current amendment as presented by this Ordinance.

Section 4. Validity

If any article, section, subsection, sentence, clause or phrase of this Ordinance is held to be unconstitutional or invalid for any reason, such decision shall not affect the remaining portions of this Ordinance.

Section 5. Effective Date

This Ordinance shall take effect immediately upon passage.

Mr. MacLean noted this Ordinance was mainly a house keeping change. Mr. MacLean explained the legislation now allows for Council to appoint and remove Police Commission.

A motion was made by Councilor O’Hearne and seconded by Councilor Stone to pass Ordinance 594 to a second reading and public hearing on June 22nd, 2022.

Councilor O’Hearne read Ordinance 594 into record.

Mayor Girard opened up the public hearing, no one spoke. Mayor Girard closed the public hearing.

Roll call:

Contois - yes

O’Hearne - yes

Stone - yes

Koloski - yes

Limoges - yes

Mooshian - yes

Girard - yes

Motion carried 7-0

Resolution 2022-31 Encumbrance Budget

BE IT RESOLVED by the Council of the City of Claremont, New Hampshire, after public hearing duly noticed, that it hereby adopts the following for the 2022 encumbrances: (*Majority vote required*)

 CITY OF CLAREMONT		
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Council Meeting
June 8, 2022
Page 12

Dept #	Department - General Description	Amount	Detailed Description
411	Policy/Executive	\$ 30,000	Re-Encumber \$30,000 for Code Enforcement/Property Maintenance
416	Planning & Development	\$ 5,000	Re-Encumber for Vegetation Control/ banners for Pleasant St.
416	Planning & Development	\$ 2,000	Increase cost of gasoline, propane, and electrical
417	General Services	\$ 35,000	Network switches, rotators, and city hall copy machine
421	Police	\$ 40,000	Re-Encumber for Purchase of Lockers and upgrades to existing shower areas
421	Police	\$ 8,000	Re-Encumber for continued improvements in the booking room to include equipment and safety measures.
421	Police	\$ 110,146	Re-Encumber to cover descending share of COPS grant if awarded
421	Police	\$ 5,000	Re-Encumber for additional Advertising of open positions at the CPD
421	Police	\$ 30,000	Re-Encumber \$20,000 from FY 2021 and encumber another \$10,000 from FY 2022 for Recruiting Bonus: Would like to continue carrying over funds in hopes of attracting qualified candidates.
421	Police	\$ 30,000	Retention contracts
422	Fire	\$ 3,000	Vehicle M&R for corrosion repair to Ladder 1
432	Welfare	\$ 12,000	Rents held for inspection process and to purchase filing cabinets
434	Sanitation	\$ 3,500	Re-Encumber from FY 2021 for "Put & Take" building to use as Transfer Station office space; will need to be wired for electric & phone, be insulated, painted etc.

Council Meeting

June 8, 2022

Page 13

TIFD	P&D - Downtown TIFD	\$ 15,518	Re-encumber Engineering services and demolition costs anticipated for the old Sullivan tower/wheelhouse
	Total Request to Encumber into FY 2023	\$ 329,164	To use the General Fund monies (\$313,646) and TIFD monies (\$15,518) already raised on the tax rate for projects, services or equipment that were not able to be completed in the current Fiscal year.

Ms. Richmond explained during the switch to LED lighting at City Hall, electrical issues had come to attention and stated the need to raise an appropriate funds to fix these issues. A revised resolution will be added to the next Council meeting with identified changes.

Councilor O’Hearne questioned the police retention contract, Ms. Richmond explained this is one of the revisions that will brought back.

By consensus of the Council, Resolution 2022-31 Encumbrance Budget will be brought back on the June 22nd Council Meeting.

General Fund Budget

Ms. Richmond shared the FY2023 budget updates that were made at the request from the May 25th Council meeting.

FY 2023 Budget Updates				
Expenses				
Budget	G/L account	Original Budget Amount	Revised Amount	Notes
421	01-421-101-0000 Regular Pay Pg. 67	\$1,593,289	\$1,443,289	Hiring open positions to coincide with the academy dates, resulting in cost savings.
441	01-441-980-9010 Street Inventory/Paving Pg. 85	\$0.00	Hybrid Model	Hybrid Model with \$500,000 or \$400,000 bond along with \$277,499.85 in Highway Block Grant increase (SB 401)

Council Meeting

June 8, 2022

Page 14

490 Water	90-490-590-0000 Contract Labor & Svcs-WTP Pg. 121	\$261,556	\$267,036	Contracted increases after budget creation
492 Sewer	92-492-202-0000 Consulting – Engineering & Professional Services Pg. 125	\$40,000	\$30,000	Reduction is line based on projected services required in FY 2023
492 Sewer	92-492-590-0000 Contract Labor & Services WWTP Pg. 126	\$610,324	\$622,866	Contracted increases after budget creation
Revenues				
Budget	G/L account	Original Budget Amount	Revised Amount	Notes
License permits & fees	01-330-080-0000 Transfer Station Tickets Pg. 31	\$105,000	\$153,000	Assumes no change in customer base, estimated 25,000 bags with fee at \$5.00 a bag
Payment in Lieu of Taxes	01-360-010-0095 SCS 92-102 Main Pg 33	\$24,625	\$17,991	Multiple Pilots for SCS in this one line separated into individual G/L accounts for tracking
Payment in Lieu of Taxes	01-360-010-0190 Sullivan County Sober House Pg 33	\$0.0	\$12,000	To pick up the budget appropriation
Payment in Lieu of Taxes	01-360-010-0200 Sheazach Property Mgmt. Pg 33	\$0.0	\$1,106.46	To pick up the budget appropriation
Payment in Lieu of Taxes	01-360-010-0210 Reed Truck Services Inc Pg. 33	\$0.0	\$639.29	To pick up the budget appropriation
Payment in Lieu of Taxes	01-360-020-0100 Sweet Water Hydro Electric Pg. 33	\$0.0	\$4,000	To pick up the budget appropriation

By Consensus of the Council, General Fund Will be brought back on the June 22nd Council Meeting.

Streets and Roads (Highways)

Ms. Richmond included two spreadsheets relative to paving bond models. One is for \$400,000 and the other Spreadsheet is for \$500,000

Mayor Girard shared concern for dates on the spreadsheet, and asked Ms. Richmond to adjust.

Mayor Girard asked the Council if the rest of the agenda should be moved to June 22nd.

By consensus of the Council, Streets and Roads (highways), Sewer Fund Budget, Police Budget will be moved to the June 22nd Council Meeting

COMMITTEE REPORTS

Councilor Stone noted the Policy Committee has been working on Hawkers and Peddlers as well as food-truck licensing. The Policy Committee will meet once in July and August

Councilor Koloski noted the Planning Committee's current topic is accessory dwelling units, one has been approved.

FUTURE AGENDA ITEMS AND DIRECTIVES

Councilor Koloski would like to see the Licensing Board revisit Arrowhead's request for full alcohol service.

CONSULTATION WITH LEGAL COUNSEL

None.

ADJOURNMENT

At 9:42 p.m., a motion was made by Councilor O'Hearne and seconded by Councilor Limoges to adjourn.

Voice vote: motion carried 7-0

Respectfully Submitted,

Julia A Bizzarro
Clerk to the Council